STATUTORY INSTRUMENTS

1998 No. 2306

HEALTH AND SAFETY

The Provision and Use of Work Equipment Regulations 1998

Made - - - -	*15th September 1998*
Laid before Parliament	*25th September 1998*
Coming into force - -	*5th December 1998*

The Secretary of State, in the exercise of the powers conferred on him by sections 15(1), (2), (3)(a), (5) and (6)(a), 49 and 82(3)(a) of, and paragraphs 1(1), (2) and (3), 9, 14, 15(1) and 16 of Schedule 3 to, the Health and Safety at Work etc. Act 1974(**1**) ("the 1974 Act") and of all other powers enabling him in that behalf and for the purpose of giving effect without modifications to proposals submitted to him by the Health and Safety Commission under section 11(2)(d) of the 1974 Act, after the carrying out by the said Commission of consultations in accordance with section 50(3) of that Act, hereby makes the following Regulations:

Modifications etc. (not altering text)

C1 Regulations modified (8.12.2016) by The Lifts Regulations 2016 (S.I. 2016/1093), **reg. 83(5)** (with regs. 3-5)

PART I

INTRODUCTION

Citation and commencement

1. These Regulations may be cited as the Provision and Use of Work Equipment Regulations 1998 and shall come into force on 5th December 1998.

(**1**) 1974 c. 37. Sections 15 and 50 were amended by the Employment Protection Act 1975 (c. 71) Schedule 15, paragraphs 6 and 16 respectively. The general purposes of Part I of the 1974 Act were extended by section 1(1) of the Offshore Safety Act 1992 (c. 15). Section 51A was inserted by section 1, and sections 52 and 53 were amended by sections 2 and 6 respectively, of the Police (Health and Safety) Act 1997 (c. 42).

Commencement Information

I1 Reg. 1 in force at 5.12.1998, see **reg. 1**

Interpretation

2.—(1) In these Regulations, unless the context otherwise requires—

"the 1974 Act" means the Health and Safety at Work etc. Act 1974;

"employer" except in regulation 3(2) and (3) includes a person to whom the requirements imposed by these Regulations apply by virtue of regulation 3(3)(a) and (b);

"essential requirements" means requirements described in regulation 10(1);

"the Executive" means the Health and Safety Executive;

"inspection" in relation to an inspection under paragraph (1) or (2) of regulation 6—

(a) means such visual or more rigorous inspection by a competent person as is appropriate for the purpose described in the paragraph;

(b) where it is appropriate to carry out testing for the purpose, includes testing the nature and extent of which are appropriate for the purpose;

"power press" means a press or press brake for the working of metal by means of tools, or for die proving, which is power driven and which embodies a flywheel and clutch;

"thorough examination" in relation to a thorough examination under paragraph (1), (2), (3) or (4) of regulation 32—

(a) means a thorough examination by a competent person;

(b) includes testing the nature and extent of which are appropriate for the purpose described in the paragraph;

"use" in relation to work equipment means any activity involving work equipment and includes starting, stopping, programming, setting, transporting, repairing, modifying, maintaining, servicing and cleaning;

"work equipment" means any machinery, appliance, apparatus, tool or installation for use at work (whether exclusively or not);

and related expressions shall be construed accordingly.

(2) Any reference in regulations 32 to 34 or Schedule 3 to a guard or protection device is a reference to a guard or protection device provided for the tools of a power press.

(3) Any reference in regulation 32 or 33 to a guard or protection device being on a power press shall, in the case of a guard or protection device designed to operate while adjacent to a power press, be construed as a reference to its being adjacent to it.

(4) Any reference in these Regulations to—

(a) a numbered regulation or Schedule is a reference to the regulation or Schedule in these Regulations so numbered; and

(b) a numbered paragraph is a reference to the paragraph so numbered in the regulation in which the reference appears.

Commencement Information

I2 Reg. 2 in force at 5.12.1998, see **reg. 1**

Application

3.—(1) These Regulations shall apply—

(a) in Great Britain; and

(b) outside Great Britain as sections 1 to 59 and 80 to 82 of the 1974 Act apply by virtue of the Health and Safety at Work etc. Act 1974 (Application outside Great Britain) Order 1995(**2**) ("the 1995 Order").

(2) The requirements imposed by these Regulations on an employer in respect of work equipment shall apply to such equipment provided for use or used by an employee of his at work.

(3) The requirements imposed by these Regulations on an employer shall also apply—

(a) to a **[**[F1]relevant self-employed person**]**, in respect of work equipment he uses at work;

(b) subject to paragraph (5), to a person who has control to any extent of—

(i) work equipment;

(ii) a person at work who uses or supervises or manages the use of work equipment; or

(iii) the way in which work equipment is used at work,

and to the extent of his control.

(4) Any reference in paragraph (3)(b) to a person having control is a reference to a person having control in connection with the carrying on by him of a trade, business or other undertaking (whether for profit or not).

(5) The requirements imposed by these Regulations shall not apply to a person in respect of work equipment supplied by him by way of sale, agreement for sale or hire-purchase agreement.

(6) Subject to paragraphs (7) to (10), these Regulations shall not impose any obligation in relation to a ship's work equipment (whether that equipment is used on or off the ship).

(7) Where merchant shipping requirements are applicable to a ship's work equipment, paragraph (6) shall relieve the shore employer of his obligations under these Regulations in respect of that equipment only where he has taken all reasonable steps to satisfy himself that the merchant shipping requirements are being complied with in respect of that equipment.

(8) In a case where the merchant shipping requirements are not applicable to the ship's work equipment by reason only that for the time being there is no master, crew or watchman on the ship, those requirements shall nevertheless be treated for the purpose of paragraph (7) as if they were applicable.

(9) Where the ship's work equipment is used in a specified operation paragraph (6) shall not apply to regulations 7 to 9, 11 to 13, 20 to 22 and 30 (each as applied by regulation 3).

(10) Paragraph (6) does not apply to a ship's work equipment provided for use or used in an activity (whether carried on in or outside Great Britain) specified in the 1995 Order save that it does apply to—

(a) the loading, unloading, fuelling or provisioning of the ship; or

(b) the construction, reconstruction, finishing, refitting, repair, maintenance, cleaning or breaking up of the ship.

(11) In this regulation—

"master" has the meaning assigned to it by section 313(1) of the Merchant Shipping Act 1995(**3**);

(**2**) S.I. 1995/263.
(**3**) 1995 c. 21.

"merchant shipping requirements" means the requirements of regulations 3 and 4 of the Merchant Shipping (Guarding of Machinery and Safety of Electrical Equipment) Regulations 1988(**4**) and regulations 5 to 10 of the Merchant Shipping (Hatches and Lifting Plant) Regulations 1988(**5**);

[[F2]"relevant self-employed person" means a self-employed person who conducts an undertaking of a prescribed description for the purposes of section 3(2) of the 1974 Act;**]**

"ship" has the meaning assigned to it by section 313(1) of the Merchant Shipping Act 1995 save that it does not include an offshore installation;

"shore employer" means an employer of persons (other than the master and crew of any ship) who are engaged in a specified operation;

"specified operation" means an operation in which the ship's work equipment is used—

(a) by persons other than the master and crew; or

(b) where persons other than the master and crew are liable to be exposed to a risk to their health or safety from its use.

Textual Amendments

F1 Words in reg. 3(3)(a) substituted (1.10.2015) by The Deregulation Act 2015 (Health and Safety at Work) (General Duties of Self-Employed Persons) (Consequential Amendments) Order 2015 (S.I. 2015/1637), art. 1, **Sch. para. 4(a)**

F2 Words in reg. 3(11) inserted (1.10.2015) by The Deregulation Act 2015 (Health and Safety at Work) (General Duties of Self-Employed Persons) (Consequential Amendments) Order 2015 (S.I. 2015/1637), art. 1, **Sch. para. 4(b)**

Commencement Information

I3 Reg. 3 in force at 5.12.1998, see **reg. 1**

PART II

GENERAL

Suitability of work equipment

4.—(1) Every employer shall ensure that work equipment is so constructed or adapted as to be suitable for the purpose for which it is used or provided.

(2) In selecting work equipment, every employer shall have regard to the working conditions and to the risks to the health and safety of persons which exist in the premises or undertaking in which that work equipment is to be used and any additional risk posed by the use of that work equipment.

(3) Every employer shall ensure that work equipment is used only for operations for which, and under conditions for which, it is suitable.

[[F3](4) In this regulation "suitable"–

(a) subject to sub-paragraph (b), means suitable in any respect which it is reasonably foreseeable will affect the health or safety of any person;

(b) in relation to–

(**4**) S.I. 1988/1636, amended by S.I. 1988/2274.
(**5**) S.I. 1988/1639, amended by S.I. 1988/2274.

(i) an offensive weapon within the meaning of section 1(4) of the Prevention of Crime Act 1953 provided for use as self-defence or as deterrent equipment; and

(ii) work equipment provided for use for arrest or restraint, by a person who holds the office of constable or an appointment as police cadet, means suitable in any respect which it is reasonably foreseeable will affect the health or safety of such person.**]**

Textual Amendments

F3 Reg. 4(4) substituted (14.4.1999) by The Police (Health and Safety) Regulations 1999 (S.I. 1999/860), regs. 1, **5(1)**

Commencement Information

I4 Reg. 4 in force at 5.12.1998, see **reg. 1**

Maintenance

5.—(1) Every employer shall ensure that work equipment is maintained in an efficient state, in efficient working order and in good repair.

(2) Every employer shall ensure that where any machinery has a maintenance log, the log is kept up to date.

Commencement Information

I5 Reg. 5 in force at 5.12.1998, see **reg. 1**

Inspection

6.—(1) Every employer shall ensure that, where the safety of work equipment depends on the installation conditions, it is inspected—

(a) after installation and before being put into service for the first time; or

(b) after assembly at a new site or in a new location,

to ensure that it has been installed correctly and is safe to operate.

(2) Every employer shall ensure that work equipment exposed to conditions causing deterioration which is liable to result in dangerous situations is inspected—

(a) at suitable intervals; and

(b) each time that exceptional circumstances which are liable to jeopardise the safety of the work equipment have occurred,

to ensure that health and safety conditions are maintained and that any deterioration can be detected and remedied in good time.

(3) Every employer shall ensure that the result of an inspection made under this regulation is recorded and kept until the next inspection under this regulation is recorded.

(4) Every employer shall ensure that no work equipment—

(a) leaves his undertaking; or

(b) if obtained from the undertaking of another person, is used in his undertaking,

unless it is accompanied by physical evidence that the last inspection required to be carried out under this regulation has been carried out.

(5) This regulation does not apply to—

(a) a power press to which regulations 32 to 35 apply;

(b) a guard or protection device for the tools of such power press;

(c) work equipment for lifting loads including persons;

(d) winding apparatus to which the **[**F4Mines Regulations 2014**]** apply;

(e) work equipment required to be inspected by **[**F5regulations **[**F622(4) or 23(2)**]** of the Construction (Design and Management) Regulations **[**F62015**]]**;

[F7(f) work equipment to which regulation 12 of the Work at Height Regulations 2005 applies**]**.

Textual Amendments

F4 Words in reg. 6(5)(d) substituted (6.4.2015) by The Mines Regulations 2014 (S.I. 2014/3248), reg. 1(2), **Sch. 5 para. 11** (with reg. 1(3))

F5 Words in reg. 6(5)(e) substituted (6.4.2007) by The Construction (Design and Management) Regulations 2007 (S.I. 2007/320), reg. 1, **Sch. 5** (with reg. 3)

F6 Words in reg. 6(5)(e) substituted (6.4.2015) by The Construction (Design and Management) Regulations 2015 (S.I. 2015/51), reg. 1, **Sch. 5** (with reg. 3, Sch. 4)

F7 Reg. 6(5)(f) added (6.4.2005) by The Work at Height Regulations 2005 (S.I. 2005/735), regs. 1, **17** (with reg. 3)

Commencement Information

I6 Reg. 6 in force at 5.12.1998, see **reg. 1**

Specific risks

7.—(1) Where the use of work equipment is likely to involve a specific risk to health or safety, every employer shall ensure that—

(a) the use of that work equipment is restricted to those persons given the task of using it; and

(b) repairs, modifications, maintenance or servicing of that work equipment is restricted to those persons who have been specifically designated to perform operations of that description (whether or not also authorised to perform other operations).

(2) The employer shall ensure that the persons designated for the purposes of sub-paragraph (b) of paragraph (1) have received adequate training related to any operations in respect of which they have been so designated.

Commencement Information

I7 Reg. 7 in force at 5.12.1998, see **reg. 1**

Information and instructions

8.—(1) Every employer shall ensure that all persons who use work equipment have available to them adequate health and safety information and, where appropriate, written instructions pertaining to the use of the work equipment.

(2) Every employer shall ensure that any of his employees who supervises or manages the use of work equipment has available to him adequate health and safety information and, where appropriate, written instructions pertaining to the use of the work equipment.

(3) Without prejudice to the generality of paragraphs (1) or (2), the information and instructions required by either of those paragraphs shall include information and, where appropriate, written instructions on—

(a) the conditions in which and the methods by which the work equipment may be used;

(b) foreseeable abnormal situations and the action to be taken if such a situation were to occur; and

(c) any conclusions to be drawn from experience in using the work equipment.

(4) Information and instructions required by this regulation shall be readily comprehensible to those concerned.

Commencement Information

I8 Reg. 8 in force at 5.12.1998, see **reg. 1**

Training

9.—(1) Every employer shall ensure that all persons who use work equipment have received adequate training for purposes of health and safety, including training in the methods which may be adopted when using the work equipment, any risks which such use may entail and precautions to be taken.

(2) Every employer shall ensure that any of his employees who supervises or manages the use of work equipment has received adequate training for purposes of health and safety, including training in the methods which may be adopted when using the work equipment, any risks which such use may entail and precautions to be taken.

Commencement Information

I9 Reg. 9 in force at 5.12.1998, see **reg. 1**

Conformity with Community requirements

10.—**[**F8(1) Every employer shall ensure that an item of work equipment conforms at all times with any essential requirements, other than requirements which, at the time of its being first supplied or put into service in any place in which these Regulations apply, did not apply to work equipment of its type.

(2) In this regulation "essential requirements", in relation to an item of work equipment, means requirements relating to the design and construction of work equipment of its type in any of the instruments listed in Schedule 1 (being instruments which give effect to Community directives concerning the safety of products)**]**.

(3) This regulation applies to items of work equipment provided for use in the premises or undertaking of the employer for the first time after 31st December 1992.

Textual Amendments

F8 Reg. 10(1)(2) substituted (17.9.2002) by The Health and Safety (Miscellaneous Amendments) Regulations 2002 (S.I. 2002/2174), regs. 1, **7(a)**

Commencement Information

I10 Reg. 10 in force at 5.12.1998, see **reg. 1**

Dangerous parts of machinery

11.—(1) Every employer shall ensure that measures are taken in accordance with paragraph (2) which are effective—

(a) to prevent access to any dangerous part of machinery or to any rotating stock-bar; or

(b) to stop the movement of any dangerous part of machinery or rotating stock-bar before any part of a person enters a danger zone.

[F9(2) The measures required by paragraph (1) shall consist of—

(a) the provision of fixed guards enclosing every dangerous part or rotating stock-bar where and to the extent that it is practicable to do so, but where or to the extent that it is not, then

(b) the provision of other guards or protection devices where and to the extent that it is practicable to do so, but where or to the extent that it is not, then

(c) the provision of jigs, holders, push-sticks or similar protection appliances used in conjunction with the machinery where and to the extent that it is practicable to do so,

and the provision of such information, instruction, training and supervision as is necessary.**]**

(3) All guards and protection devices provided under sub-paragraphs (a) or (b) of paragraph (2) shall—

(a) be suitable for the purpose for which they are provided;

(b) be of good construction, sound material and adequate strength;

(c) be maintained in an efficient state, in efficient working order and in good repair;

(d) not give rise to any increased risk to health or safety;

(e) not be easily bypassed or disabled;

(f) be situated at sufficient distance from the danger zone;

(g) not unduly restrict the view of the operating cycle of the machinery, where such a view is necessary;

(h) be so constructed or adapted that they allow operations necessary to fit or replace parts and for maintenance work, restricting access so that it is allowed only to the area where the work is to be carried out and, if possible, without having to dismantle the guard or protection device.

(4) All protection appliances provided under sub-paragraph (c) of paragraph (2) shall comply with sub-paragraphs (a) to (d) and (g) of paragraph (3).

(5) In this regulation—

"danger zone" means any zone in or around machinery in which a person is exposed to a risk to health or safety from contact with a dangerous part of machinery or a rotating stock-bar;

"stock-bar" means any part of a stock-bar which projects beyond the head-stock of a lathe.

Textual Amendments

F9 Reg. 11(2) substituted (17.9.2002) by The Health and Safety (Miscellaneous Amendments) Regulations 2002 (S.I. 2002/2174), regs. 1, **7(b)**

Commencement Information

I11 Reg. 11 in force at 5.12.1998, see **reg. 1**

Protection against specified hazards

12.—(1) Every employer shall take measures to ensure that the exposure of a person using work equipment to any risk to his health or safety from any hazard specified in paragraph (3) is either prevented, or, where that is not reasonably practicable, adequately controlled.

(2) The measures required by paragraph (1) shall—

(a) be measures other than the provision of personal protective equipment or of information, instruction, training and supervision, so far as is reasonably practicable; and

(b) include, where appropriate, measures to minimise the effects of the hazard as well as to reduce the likelihood of the hazard occurring.

(3) The hazards referred to in paragraph (1) are—

(a) any article or substance falling or being ejected from work equipment;

(b) rupture or disintegration of parts of work equipment;

(c) work equipment catching fire or overheating;

(d) the unintended or premature discharge of any article or of any gas, dust, liquid, vapour or other substance which, in each case, is produced, used or stored in the work equipment;

(e) the unintended or premature explosion of the work equipment or any article or substance produced, used or stored in it.

(4) For the purposes of this regulation "adequately" means adequately having regard only to the nature of the hazard and the nature and degree of exposure to the risk.

(5) This regulation shall not apply where any of the following Regulations apply in respect of any risk to a person's health or safety for which such Regulations require measures to be taken to prevent or control such risk, namely—

(a) the Ionising Radiations Regulations 1985(**6**);

(b) **[**F10the Control of Asbestos Regulations 2012**]**;

(c) the Control of Substances Hazardous to Health Regulations 1994(**7**);

(d) **[**F11the Control of Noise at Work Regulations 2005**]**;

F12(e) . . . . . .

(f) the Control of Lead at Work Regulations 1998(**8**);

[F13(g) the Control of Vibration at Work Regulations 2005**]**.

Textual Amendments

F10 Words in reg. 12(5)(b) substituted (6.4.2012) by The Control of Asbestos Regulations 2012 (S.I. 2012/632), reg. 1, **Sch. 3**

F11 Words in reg. 12(5)(d) substituted (6.4.2006 for specified purposes, 6.4.2008 in so far as not already in force) by The Control of Noise at Work Regulations 2005 (S.I. 2005/1643), regs. 1, **15(1)(b)** (with reg. 3(3)(4))

(**6**) S.I. 1985/1333, amended by S.I. 1992/743, 1992/2966.
(**7**) S.I. 1994/3246, amended by S.I. 1994/3247, 1996/2001.
(**8**) S.I. 1998/543.

F12 Reg. 12(5)(e) revoked (6.4.2013) by The Health and Safety (Miscellaneous Repeals, Revocations and Amendments) Regulations 2013 (S.I. 2013/448), reg. 1, **Sch. Table 4**

F13 Reg. 12(5)(g) added (6.7.2005) by The Control of Vibration at Work Regulations 2005 (S.I. 2005/1093), regs. 1, **13(2)** (with reg. 3)

Commencement Information

I12 Reg. 12 in force at 5.12.1998, see **reg. 1**

High or very low temperature

13. Every employer shall ensure that work equipment, parts of work equipment and any article or substance produced, used or stored in work equipment which, in each case, is at a high or very low temperature shall have protection where appropriate so as to prevent injury to any person by burn, scald or sear.

Commencement Information

I13 Reg. 13 in force at 5.12.1998, see **reg. 1**

Controls for starting or making a significant change in operating conditions

14.—(1) Every employer shall ensure that, where appropriate, work equipment is provided with one or more controls for the purposes of—

(a) starting the work equipment (including re-starting after a stoppage for any reason); or

(b) controlling any change in the speed, pressure or other operating conditions of the work equipment where such conditions after the change result in risk to health and safety which is greater than or of a different nature from such risks before the change.

(2) Subject to paragraph (3), every employer shall ensure that, where a control is required by paragraph (1), it shall not be possible to perform any operation mentioned in sub-paragraph (a) or (b) of that paragraph except by a deliberate action on such control.

(3) Paragraph (1) shall not apply to re-starting or changing operating conditions as a result of the normal operating cycle of an automatic device.

Commencement Information

I14 Reg. 14 in force at 5.12.1998, see **reg. 1**

Stop controls

15.—(1) Every employer shall ensure that, where appropriate, work equipment is provided with one or more readily accessible controls the operation of which will bring the work equipment to a safe condition in a safe manner.

(2) Any control required by paragraph (1) shall bring the work equipment to a complete stop where necessary for reasons of health and safety.

(3) Any control required by paragraph (1) shall, if necessary for reasons of health and safety, switch off all sources of energy after stopping the functioning of the work equipment.

(4) Any control required by paragraph (1) shall operate in priority to any control which starts or changes the operating conditions of the work equipment.

Commencement Information
I15 Reg. 15 in force at 5.12.1998, see **reg. 1**

Emergency stop controls

16.—(1) Every employer shall ensure that, where appropriate, work equipment is provided with one or more readily accessible emergency stop controls unless it is not necessary by reason of the nature of the hazards and the time taken for the work equipment to come to a complete stop as a result of the action of any control provided by virtue of regulation 15(1).

(2) Any control required by paragraph (1) shall operate in priority to any control required by regulation 15(1).

Commencement Information
I16 Reg. 16 in force at 5.12.1998, see **reg. 1**

Controls

17.—(1) Every employer shall ensure that all controls for work equipment are clearly visible and identifiable, including by appropriate marking where necessary.

(2) Except where necessary, the employer shall ensure that no control for work equipment is in a position where any person operating the control is exposed to a risk to his health or safety.

(3) Every employer shall ensure where appropriate—

(a) that, so far as is reasonably practicable, the operator of any control is able to ensure from the position of that control that no person is in a place where he would be exposed to any risk to his health or safety as a result of the operation of that control, but where or to the extent that it is not reasonably practicable;

(b) that, so far as is reasonably practicable, systems of work are effective to ensure that, when work equipment is about to start, no person is in a place where he would be exposed to a risk to his health or safety as a result of the work equipment starting, but where neither of these is reasonably practicable;

(c) that an audible, visible or other suitable warning is given by virtue of regulation 24 whenever work equipment is about to start.

(4) Every employer shall take appropriate measures to ensure that any person who is in a place where he would be exposed to a risk to his health or safety as a result of the starting or stopping of work equipment has sufficient time and suitable means to avoid that risk.

Commencement Information
I17 Reg. 17 in force at 5.12.1998, see **reg. 1**

Control systems

18.—[F14(1) Every employer shall ensure, so far as is reasonably practicable, that all control systems of work equipment—

(a) are safe; and

(b) are chosen making due allowance for the failures, faults and constraints to be expected in the planned circumstances of use.**]**

(2) Without prejudice to the generality of paragraph (1), a control system shall not be safe unless—

(a) its operation does not create any increased risk to health or safety;

(b) it ensures, so far as is reasonably practicable, that any fault in or damage to any part of the control system or the loss of supply of any source of energy used by the work equipment cannot result in additional or increased risk to health or safety;

(c) it does not impede the operation of any control required by regulation 15 or 16.

Textual Amendments

F14 Reg. 18(1) substituted (17.9.2002) by The Health and Safety (Miscellaneous Amendments) Regulations 2002 (S.I. 2002/2174), regs. 1, **7(c)**

Commencement Information

I18 Reg. 18 in force at 5.12.1998, see **reg. 1**

Isolation from sources of energy

19.—(1) Every employer shall ensure that where appropriate work equipment is provided with suitable means to isolate it from all its sources of energy.

(2) Without prejudice to the generality of paragraph (1), the means mentioned in that paragraph shall not be suitable unless they are clearly identifiable and readily accessible.

(3) Every employer shall take appropriate measures to ensure that re-connection of any energy source to work equipment does not expose any person using the work equipment to any risk to his health or safety.

Commencement Information

I19 Reg. 19 in force at 5.12.1998, see **reg. 1**

Stability

20. Every employer shall ensure that work equipment or any part of work equipment is stabilised by clamping or otherwise where necessary for purposes of health or safety.

Commencement Information

I20 Reg. 20 in force at 5.12.1998, see **reg. 1**

Lighting

21. Every employer shall ensure that suitable and sufficient lighting, which takes account of the operations to be carried out, is provided at any place where a person uses work equipment.

Commencement Information
I21 Reg. 21 in force at 5.12.1998, see **reg. 1**

Maintenance operations

22. Every employer shall take appropriate measures to ensure that work equipment is so constructed or adapted that, so far as is reasonably practicable, maintenance operations which involve a risk to health or safety can be carried out while the work equipment is shut down, or in other cases—

(a) maintenance operations can be carried out without exposing the person carrying them out to a risk to his health or safety; or

(b) appropriate measures can be taken for the protection of any person carrying out maintenance operations which involve a risk to his health or safety.

Commencement Information
I22 Reg. 22 in force at 5.12.1998, see **reg. 1**

Markings

23. Every employer shall ensure that work equipment is marked in a clearly visible manner with any marking appropriate for reasons of health and safety.

Commencement Information
I23 Reg. 23 in force at 5.12.1998, see **reg. 1**

Warnings

24.—(1) Every employer shall ensure that work equipment incorporates any warnings or warning devices which are appropriate for reasons of health and safety.

(2) Without prejudice to the generality of paragraph (1), warnings given by warning devices on work equipment shall not be appropriate unless they are unambiguous, easily perceived and easily understood.

Commencement Information
I24 Reg. 24 in force at 5.12.1998, see **reg. 1**

PART III

MOBILE WORK EQUIPMENT

Employees carried on mobile work equipment

25. Every employer shall ensure that no employee is carried by mobile work equipment unless—

(a) it is suitable for carrying persons; and

(b) it incorporates features for reducing to as low as is reasonably practicable risks to their safety, including risks from wheels or tracks.

Commencement Information

I25 Reg. 25 in force at 5.12.1998, see **reg. 1**

Rolling over of mobile work equipment

26.—(1) Every employer shall ensure that where there is a risk to an employee riding on mobile work equipment from its rolling over, it is minimised by—

(a) stabilising the work equipment;

(b) a structure which ensures that the work equipment does no more than fall on its side;

(c) a structure giving sufficient clearance to anyone being carried if it overturns further than that; or

(d) a device giving comparable protection.

(2) Where there is a risk of anyone being carried by mobile work equipment being crushed by its rolling over, the employer shall ensure that it has a suitable restraining system for him.

(3) This regulation shall not apply to a fork-lift truck having a structure described in sub-paragraph (b) or (c) of paragraph (1).

(4) Compliance with this regulation is not required where—

(a) it would increase the overall risk to safety;

(b) it would not be reasonably practicable to operate the mobile work equipment in consequence; or

(c) in relation to an item of work equipment provided for use in the undertaking or establishment before 5th December 1998 it would not be reasonably practicable.

Commencement Information

I26 Reg. 26 in force at 5.12.1998, see **reg. 1**

Overturning of fork-lift trucks

27. Every employer shall ensure that a fork-lift truck to which regulation 26(3) refers and which carries an employee is adapted or equipped to reduce to as low as is reasonably practicable the risk to safety from its overturning.

Commencement Information

I27 Reg. 27 in force at 5.12.1998, see **reg. 1**

Self-propelled work equipment

28. Every employer shall ensure that, where self-propelled work equipment may, while in motion, involve risk to the safety of persons—

(a) it has facilities for preventing its being started by an unauthorised person;

(b) it has appropriate facilities for minimising the consequences of a collision where there is more than one item of rail-mounted work equipment in motion at the same time;

(c) it has a device for braking and stopping;

(d) where safety constraints so require, emergency facilities operated by readily accessible controls or automatic systems are available for braking and stopping the work equipment in the event of failure of the main facility;

(e) where the driver's direct field of vision is inadequate to ensure safety, there are adequate devices for improving his vision so far as is reasonably practicable;

(f) if provided for use at night or in dark places—

(i) it is equipped with lighting appropriate to the work to be carried out; and

(ii) is otherwise sufficiently safe for such use;

(g) if it, or anything carried or towed by it, constitutes a fire hazard and is liable to endanger employees, it carries appropriate fire-fighting equipment, unless such equipment is kept sufficiently close to it.

Commencement Information
I28 Reg. 28 in force at 5.12.1998, see **reg. 1**

Remote-controlled self-propelled work equipment

29. Every employer shall ensure that where remote-controlled self-propelled work equipment involves a risk to safety while in motion—

(a) it stops automatically once it leaves its control range; and

(b) where the risk is of crushing or impact it incorporates features to guard against such risk unless other appropriate devices are able to do so.

Commencement Information
I29 Reg. 29 in force at 5.12.1998, see **reg. 1**

Drive shafts

30.—(1) Where the seizure of the drive shaft between mobile work equipment and its accessories or anything towed is likely to involve a risk to safety every employer shall—

(a) ensure that the work equipment has a means of preventing such seizure; or

(b) where such seizure cannot be avoided, take every possible measure to avoid an adverse effect on the safety of an employee.

(2) Every employer shall ensure that—

(a) where mobile work equipment has a shaft for the transmission of energy between it and other mobile work equipment; and

(b) the shaft could become soiled or damaged by contact with the ground while uncoupled,

the work equipment has a system for safeguarding the shaft.

Commencement Information
I30 Reg. 30 in force at 5.12.1998, see **reg. 1**

PART IV

POWER PRESSES

Power presses to which Part IV does not apply

31. Regulations 32 to 35 shall not apply to a power press of a kind which is described in Schedule 2.

Commencement Information
I31 Reg. 31 in force at 5.12.1998, see **reg. 1**

Thorough examination of power presses, guards and protection devices

32.—(1) Every employer shall ensure that a power press is not put into service for the first time after installation, or after assembly at a new site or in a new location unless—

(a) it has been thoroughly examined to ensure that it—

(i) has been installed correctly; and

(ii) would be safe to operate; and

(b) any defect has been remedied.

(2) Every employer shall ensure that a guard, other than one to which paragraph (3) relates, or protection device is not put into service for the first time on a power press unless—

(a) it has been thoroughly examined when in position on that power press to ensure that it is effective for its purpose; and

(b) any defect has been remedied.

(3) Every employer shall ensure that that part of a closed tool which acts as a fixed guard is not used on a power press unless—

(a) it has been thoroughly examined when in position on any power press in the premises to ensure that it is effective for its purpose; and

(b) any defect has been remedied.

(4) For the purpose of ensuring that health and safety conditions are maintained, and that any deterioration can be detected and remedied in good time, every employer shall ensure that—

(a) every power press is thoroughly examined, and its guards and protection devices are thoroughly examined when in position on that power press—

(i) at least every 12 months, where it has fixed guards only; or

(ii) at least every 6 months, in other cases; and

(iii) each time that exceptional circumstances have occurred which are liable to jeopardise the safety of the power press or its guards or protection devices; and

(b) any defect is remedied before the power press is used again.

(5) Where a power press, guard or protection device was before the coming into force of these Regulations required to be thoroughly examined by regulation 5(2) of the Power Presses Regulations 1965(**9**) the first thorough examination under paragraph (4) shall be made before the date by which a thorough examination would have been required by regulation 5(2) had it remained in force.

(6) Paragraph (4) shall not apply to that part of a closed tool which acts as a fixed guard.

(7) In this regulation "defect" means a defect notified under regulation 34 other than a defect which has not yet become a danger to persons.

Commencement Information

I32 Reg. 32 in force at 5.12.1998, see **reg. 1**

Inspection of guards and protection devices

33.—(1) Every employer shall ensure that a power press is not used after the setting, re-setting or adjustment of its tools, save in trying out its tools or save in die proving, unless—

(a) its every guard and protection device has been inspected and tested while in position on the power press by a person appointed in writing by the employer who is—

(i) competent; or

(ii) undergoing training for that purpose and acting under the immediate supervision of a competent person,

and who has signed a certificate which complies with paragraph (3); or

(b) the guards and protection devices have not been altered or disturbed in the course of the adjustment of its tools.

(2) Every employer shall ensure that a power press is not used after the expiration of the fourth hour of a working period unless its every guard and protection device has been inspected and tested while in position on the power press by a person appointed in writing by the employer who is—

(a) competent; or

(b) undergoing training for that purpose and acting under the immediate supervision of a competent person,

and who has signed a certificate which complies with paragraph (3).

(3) A certificate referred to in this regulation shall—

(a) contain sufficient particulars to identify every guard and protection device inspected and tested and the power press on which it was positioned at the time of the inspection and test;

(b) state the date and time of the inspection and test; and

(c) state that every guard and protection device on the power press is in position and effective for its purpose.

(4) In this regulation "working period", in relation to a power press, means—

(a) the period in which the day's or night's work is done; or

(b) in premises where a shift system is in operation, a shift.

(**9**) S.I. 1965/1441.

Commencement Information

I33 Reg. 33 in force at 5.12.1998, see **reg. 1**

Reports

34.—(1) A person making a thorough examination for an employer under regulation 32 shall—

(a) notify the employer forthwith of any defect in a power press or its guard or protection device which in his opinion is or could become a danger to persons;

(b) as soon as is practicable make a report of the thorough examination to the employer in writing authenticated by him or on his behalf by signature or equally secure means and containing the information specified in Schedule 3; and

(c) where there is in his opinion a defect in a power press or its guard or protection device which is or could become a danger to persons, send a copy of the report as soon as is practicable to the enforcing authority for the premises in which the power press is situated.

(2) A person making an inspection and test for an employer under regulation 33 shall forthwith notify the employer of any defect in a guard or protection device which in his opinion is or could become a danger to persons and the reason for his opinion.

Commencement Information

I34 Reg. 34 in force at 5.12.1998, see **reg. 1**

Keeping of information

35.—(1) Every employer shall ensure that the information in every report made pursuant to regulation 34(1) is kept available for inspection for 2 years after it is made.

(2) Every employer shall ensure that a certificate under regulation **[**[F15]33**]** is kept available for inspection—

(a) at or near the power press to which it relates until superseded by a later certificate; and

(b) after that, until 6 months have passed since it was signed.

Textual Amendments

F15 Word in reg. 35(2) substituted (17.9.2002) by The Health and Safety (Miscellaneous Amendments) Regulations 2002 (S.I. 2002/2174), regs. 1, **7(d)**

Commencement Information

I35 Reg. 35 in force at 5.12.1998, see **reg. 1**

PART V

MISCELLANEOUS

Exemption for the armed forces

36.—(1) The Secretary of State for Defence may, in the interests of national security, by a certificate in writing exempt any of the home forces, any visiting force or any headquarters from any requirement or prohibition imposed by these Regulations and any such exemption may be granted subject to conditions and to a limit of time and may be revoked by the said Secretary of State by a certificate in writing at any time.

(2) In this regulation—

(a) "the home forces" has the same meaning as in section 12(1) of the Visiting Forces Act 1952(**10**);

(b) "headquarters" has the same meaning as in article 3(2) of the Visiting Forces and International Headquarters (Application of Law) Order 1965(**11**);

(c) "visiting force" has the same meaning as it does for the purposes of any provision of Part I of the Visiting Forces Act 1952.

Commencement Information

I36 Reg. 36 in force at 5.12.1998, see **reg. 1**

Transitional provision

37. The requirements in regulations 25 to 30 shall not apply to work equipment provided for use in the undertaking or establishment before 5th December 1998 until 5th December 2002.

Commencement Information

I37 Reg. 37 in force at 5.12.1998, see **reg. 1**

Repeal of enactment

38. Section 19 of the Offices, Shops and Railway Premises Act 1963(**12**) is repealed.

Commencement Information

I38 Reg. 38 in force at 5.12.1998, see **reg. 1**

Revocation of instruments

39. The instruments specified in column 1 of Schedule 4 are revoked to the extent specified in column 3 of that Schedule.

(**10**) 1952 c. 67.
(**11**) S.I. 1965/1536, to which there are amendments not relevant to these Regulations.
(**12**) 1963 c. 41.

Commencement Information

I39 Reg. 39 in force at 5.12.1998, see **reg. 1**

Signed by authority of the Secretary of State

Alan Meale
Parliamentary Under Secretary of State,
Department of the Environment, Transport and the Regions

15th September 1998

SCHEDULE 1

Regulation 10

INSTRUMENTS WHICH GIVE EFFECT TO COMMUNITY DIRECTIVES CONCERNING THE SAFETY OF PRODUCTS

Commencement Information

I40 Sch. 1 in force at 5.12.1998, see **reg. 1**

(1) *Title*	(2) *Reference*
The Construction Plant and Equipment (Harmonisation of Noise Emission Standards) Regulations 1985	S.I. 1985/1968, amended by S.I. 1989/1127
The Construction Plant and Equipment (Harmonisation of Noise Emission Standards) Regulations 1988	S.I. 1988/361, amended by S.I. 1992/488, 1995/2357
The Electro-medical Equipment (EEC Requirements) Regulations 1988	S.I. 1988/1586, amended by S.I. 1994/3017
The Low Voltage Electrical Equipment (Safety) Regulations 1989	S.I. 1989/728, amended by S.I. 1994/3260
F16	**F16**
. . .	. . .
F17	**F17**
. . .	. . .
The Lawnmowers (Harmonisation of Noise Emission Standards) Regulations 1992	S.I. 1992/168
The Gas Appliances (Safety) Regulations 1992	S.I. 1992/711
The Electromagnetic Compatibility Regulations 1992	S.I. 1992/2372, amended by S.I. 1994/3080
F18	**F18**
. . .	. . .
The Personal Protective Equipment (EC Directive) Regulations 1992	S.I. 1992/3139, amended by S.I. 1993/3074, 1994/2326, 1996/3039
The Active Implantable Medical Devices Regulations 1992	S.I. 1992/3146, amended by S.I. 1995/1671
The Medical Devices Regulations 1994	S.I. 1994/3017
F19	**F19**
. . .	. . .
The Gas Appliances (Safety) Regulations 1995	S.I. 1995/1629
The Equipment and Protective Systems Intended for Use in Potentially Explosive Atmospheres Regulations 1996	**[**F20S.I.1996/192, amended by S.I. 1998/81, 2001/3766, 2005/830**]**

(1) *Title*	(2) *Reference*
F21	F21
. . .	. . .
F22	F22
. . .	. . .
[F23The Noise Emission in the Environment by Equipment for use Outdoors Regulations 2001	S.I. 2001/1701]
F24	F24
. . .	. . .
[F25The Supply of Machinery (Safety) Regulations 2008]	[F26S.I. 2008/1597]
[F27The Simple Pressure Vessels (Safety) Regulations 2016	S.I. 2016/1092]
[F28The Lifts Regulations 2016]	[F29 S.I. 2016/1093]
[F30The Electrical Equipment (Safety) Regulations 2016]	[F31S.I. 2016/1101]
[F32The Pressure Equipment (Safety) Regulations 2016	S.I. 2016/1105]

Textual Amendments

F16 Words in Sch. 1 omitted (1.7.2013) by virtue of The Construction Products Regulations 2013 (S.I. 2013/1387), reg. 1, **Sch. 5 para. 1**

F17 Words in Sch. 1 omitted (8.12.2016) by virtue of The Simple Pressure Vessels (Safety) Regulations 2016 (S.I. 2016/1092), regs. 1, **78(1)** (with reg. 3)

F18 Words in Sch. 1 omitted (29.12.2009) by virtue of The Supply of Machinery (Safety) Regulations 2008 (S.I. 2008/1597), reg. 1(1), **Sch. 7 para. 1(a)** (with reg. 28)

F19 Words in Sch. 1 omitted (8.12.2016) by virtue of The Electrical Equipment (Safety) Regulations 2016 (S.I. 2016/1101), reg. 1, **Sch. 7 para. 2** (with reg. 3)

F20 Words in Sch. 1 substituted (1.5.2005) by The Equipment and Protective Systems Intended for Use in Potentially Explosive Atmospheres (Amendment) Regulations 2005 (S.I. 2005/830), regs. 1, **3**

F21 Words in Sch. 1 omitted (8.12.2016) by virtue of The Lifts Regulations 2016 (S.I. 2016/1093), regs. 1, **83(4)(a)** (with regs. 3-5)

F22 Words in Sch. 1 omitted (8.12.2016) by virtue of The Pressure Equipment (Safety) Regulations 2016 (S.I. 2016/1105), reg. 1, **Sch. 12 para. 1** (with reg. 88)

F23 Words in Sch. 1 added (3.7.2001) by The Noise Emission in the Environment by Equipment for use Outdoors Regulations 2001 (S.I. 2001/1701), regs. 1(3), **22(1)**

F24 Words in Sch. 1 omitted (30.7.2018) by virtue of The Cableway Installations Regulations 2018 (S.I. 2018/816), regs. 1, **28(1)**

F25 Words in Sch. 1 inserted (29.12.2009) by The Supply of Machinery (Safety) Regulations 2008 (S.I. 2008/1597), reg. 1(1), **Sch. 7 para. 1(b)(i)** (with reg. 28)

F26 Words in Sch. 1 inserted (29.12.2009) by The Supply of Machinery (Safety) Regulations 2008 (S.I. 2008/1597), reg. 1(1), **Sch. 7 para. 1(b)(ii)** (with reg. 28)

F27 Words in Sch. 1 inserted (8.12.2016) by The Simple Pressure Vessels (Safety) Regulations 2016 (S.I. 2016/1092), regs. 1, **78(1)** (with reg. 3)

F28 Words in Sch. 1 added (8.12.2016) by The Lifts Regulations 2016 (S.I. 2016/1093), regs. 1, **83(4)(b)(i)** (with regs. 3-5)
F29 Words in Sch. 1 added (8.12.2016) by The Lifts Regulations 2016 (S.I. 2016/1093), regs. 1, **83(4)(b)(ii)** (with regs. 3-5)
F30 Words in Sch. 1 inserted (8.12.2016) by The Electrical Equipment (Safety) Regulations 2016 (S.I. 2016/1101), reg. 1, **Sch. 7 para. 2(a)** (with reg. 3)
F31 Word in Sch. 1 inserted (8.12.2016) by The Electrical Equipment (Safety) Regulations 2016 (S.I. 2016/1101), reg. 1, **Sch. 7 para. 2(b)** (with reg. 3)
F32 Words in Sch. 1 inserted (8.12.2016) by The Pressure Equipment (Safety) Regulations 2016 (S.I. 2016/1105), reg. 1, **Sch. 12 para. 1** (with reg. 88)

SCHEDULE 2

Regulation 31

POWER PRESSES TO WHICH REGULATIONS 32 TO 35 DO NOT APPLY

Commencement Information
I41 Sch. 2 in force at 5.12.1998, see reg. 1

1. A power press for the working of hot metal.

2. A power press not capable of a stroke greater than 6 millimetres.

3. A guillotine.

4. A combination punching and shearing machine, turret punch press or similar machine for punching, shearing or cropping.

5. A machine, other than a press brake, for bending steel sections.

6. A straightening machine.

7. An upsetting machine.

8. A heading machine.

9. A riveting machine.

10. An eyeletting machine.

11. A press-stud attaching machine.

12. A zip fastener bottom stop attaching machine.

13. A stapling machine.

14. A wire stitching machine.

15. A power press for the compacting of metal powders.

SCHEDULE 3

Regulation 34(1)(b)

INFORMATION TO BE CONTAINED IN A REPORT OF A THOROUGH EXAMINATION OF A POWER PRESS, GUARD OR PROTECTION DEVICE

Commencement Information

I42 Sch. 3 in force at 5.12.1998, see reg. 1

1. The name of the employer for whom the thorough examination was made.

2. The address of the premises at which the thorough examination was made.

3. In relation to each item examined—

(a) that it is a power press, interlocking guard, fixed guard or other type of guard or protection device;

(b) where known its make, type and year of manufacture;

(c) the identifying mark of—

(i) the manufacture,

(ii) the employer.

4. In relation to the first thorough examination of a power press after installation or after assembly at a new site or in a new location—

(a) that it is such thorough examination;

(b) either that it has been installed correctly and would be safe to operate or the respects in which it has not been installed correctly or would not be safe to operate;

(c) identification of any part found to have a defect, and a description of the defect.

5. In relation to a thorough examination of a power press other than one to which paragraph 4 relates—

(a) that it is such other thorough examination;

(b) either that the power press would be safe to operate or the respects in which it would not be safe to operate;

(c) identification of any part found to have a defect which is or could become a danger to persons, and a description of the defect.

6. In relation to a thorough examination of a guard or protection device—

(a) either that it is effective for its purpose or the respects in which it is not effective for its purpose;

(b) identification of any part found to have a defect which is or could become a danger to persons, and a description of the defect.

7. Any repair, renewal or alteration required to remedy a defect found to be a danger to persons.

8. In the case of a defect which is not yet but could become a danger to persons—

(a) the time by which it could become such danger;

(b) any repair, renewal or alteration required to remedy it.

9. Any other defect which requires remedy.

10. Any repair, renewal or alteration referred to in paragraph 7 which has already been effected.

11. The date on which any defect referred to in paragraph 8 was notified to the employer under regulation 34(1)(a).

12. The qualification and address of the person making the report; that he is self-employed or if employed, the name and address of his employer.

13. The date of the thorough examination.

14. The date of the report.

15. The name of the person making the report and where different the name of the person signing or otherwise authenticating it.

SCHEDULE 4

Regulation 39

REVOCATION OF INSTRUMENTS

Commencement Information

I43 Sch. 4 in force at 5.12.1998, see **reg. 1**

(1) *Title*	*(2)* *Reference*	*(3)* *Extent of revocation*
The Operations at Unfenced Machinery (Amended Schedule) Regulations 1946	S.R. & O. 1946/156	The whole Regulations
The Agriculture (Circular Saws) Regulations 1959	S.I. 1959/427	The whole Regulations
The Prescribed Dangerous Machines 1964	S.I. 1964/971	The whole order
The Power Presses Regulations 1965	S.I. 1965/1441	The whole Regulations
The Abrasive Wheels Regulations 1970	S.I. 1970/535	The whole Regulations
The Power Presses (Amendment) Regulations 1972	S.I. 1972/1512	The whole Regulations
The Woodworking Machines Regulations 1974	S.I. 1974/903	The whole Regulations
The Operations at Unfenced Machinery (Amendment) Regulations 1976	S.I. 1976/955	The whole Regulations
The Factories (Standards of Lighting) (Revocation) Regulations 1978	S.I. 1978/1126	The whole Regulations

(1) *Title*	*(2)* *Reference*	*(3)* *Extent of revocation*
The Offshore Installations (Application of Statutory Instruments) Regulations 1984	S.I. 1984/419	The whole Regulations
The Offshore Installations (Operational Safety, Health and Welfare and Life-Saving Appliances) (Revocations) Regulations 1989	S.I. 1989/1672	The whole Regulations
The Provision and Use of Work Equipment Regulations 1992	S.I. 1992/2932	The whole Regulations
F33	**F33**	**F33**
. . .	. . .	. . .

Textual Amendments

F33 Words in Sch. 4 revoked (6.4.2007) by The Construction (Design and Management) Regulations 2007 (S.I. 2007/320), reg. 1, **Sch. 4** (with reg. 3)

EXPLANATORY NOTE

(This note is not part of the Regulations)

1. These Regulations impose health and safety requirements with respect to the provision and use of work equipment, which is defined in *regulation 2(1)*.

2. The Regulations revoke and re-enact the Provision and Use of Work Equipment Regulations 1992 ("the 1992 Regulations"), which gave effect as respects Great Britain, except in relation to certain matters, to Council Directive 89/655/EEC (OJNo. L393, 30.12.89, p.13) on the minimum health and safety requirements for the use of work equipment by workers at work ("the Directive").

3. In addition to minor and drafting changes these Regulations contain new provision giving effect as respects Great Britain to the provisions of the Directive identified below and inserted in it by the amending Council Directive 95/63/EC (OJ No. L335, 30.12.95, p.28).

4. Save in the case of regulation 34 (reports) these Regulations, as the 1992 Regulations, place duties on employers. They also place those duties (not required by the Directive) on others, who now include *(regulation 3(3) to (5))* certain persons having control of work equipment, of persons at work who use or supervise or manage its use or of the way it is used, to the extent of their control.

5. These Regulations, as the 1992 Regulations, have limited application to ships. The way in which they so apply is revised *(regulation 3(6) to (11))*.

6. The Regulations (giving effect to the replaced last paragraph of point 2.1 of Annex I to the Directive) require that control systems of work equipment are chosen making due allowance for the failures, faults and constraints to be expected in the planned circumstances of use *(regulation 19(1)(b))*.

7. The Regulations, in giving effect to Article 4a of the Directive, require—

(a) the inspection of work equipment in specified circumstances by a competent person *(regulation 6(1) and (2))*;

(b) the recording and keeping of the result *(regulation 6(3))*; and

(c) that evidence of the last inspection accompany work equipment used outside the undertaking *(regulation 6(4))*. Work equipment subject to equivalent provision is excepted *(regulation 6(5)*. "Inspection" is defined in *regulation 2(1)*.

8. The Regulations give effect to point 3.1 of Annex I to the Directive in making provision in relation to mobile work equipment for—

(a) its suitability for carrying persons and its safety features *(regulation 25)*;

(b) means to minimise the risk to safety from its rolling over *(regulation 26)*;

(c) means to reduce the risk to safety from the rolling over of a fork-lift truck *(regulation 27)*;

(d) the safety of self-propelled work equipment *(regulation 28)* and remote-controlled self propelled work equipment *(regulation 29)*; and

(e) the drive shafts of mobile work equipment *(regulation 30)*,

and as permitted by Article 4.1(c) of the Directive give relief until 5th December 2002 for existing mobile work equipment.

9. Regulations 32 to 36 and Schedules 2 and 3 re-enact with modifications the Power Presses Regulations 1965/1441 ("the 1965 Regulations"). In so doing they include provision giving effect, as regards power presses, to Article 4a of the Directive. Certain power presses, excluded by the 1965 Regulations or exempted under them, are excluded *(regulation 31 and Schedule 2)*. The Regulations provide for—

(a) the thorough examination (defined in *regulation 2(1)*) of power presses and their guards and protection devices *(regulation 32)*;

(b) their inspection after setting, re-setting or adjustment of their tools, and every working period *(regulation 33)*; and

(c) the making (regulation 34 and Schedule 3) and keeping *(regulation 35)* of reports.

10. The Regulations repeal section 19 of the Offices, Shops and Railway Premises Act 1963 *(regulation 38)* and revoke provisions of instruments *(regulation 39 and Schedule 4)*.

11. Copies of the cost benefit assessment prepared in respect of these Regulations other than regulations 31 to 35 (power presses), of that prepared in respect of regulations 3 to 35, and of that prepared in respect of woodworking machines, may be obtained from the Economic Adviser's Unit, the Health and Safety Executive, Rose Court, 2 Southwark Bridge, London SE1 9HS.

Changes to legislation:
There are currently no known outstanding effects for the The Provision and Use of Work Equipment Regulations 1998.